

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Nancy L. Fineman
400 County Center, Redwood City
Department 4, Courtroom 4C
Tuesday August 18, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept4@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 624 8977 Password: 230279

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM

LINE 1

19-CIV-02896

CHARLES E SWENBERG VS. DMARCIA, INC, ET AL.

CHARLES E SWENBERG
DMARCIA, INC

YOSEF PERETZ
ANNIE LAU

DEFENDANT'S MOTION TO COMPEL DEFENDANTS PLAINTIFF SWENBERG TO ANSWER QUESTIONS AT THEIR DEPOSITION AND REQUEST FOR MONETARY SANCTIONS AGAINST PLAINTIFF AND PLAINTIFF'S COUNSEL, JOINTLY AND SEVERALLY IN THE AMOUNT OF \$40,464.00

TENTATIVE RULING:

Defendant dmarcian, Inc.'s Motion to Compel Plaintiff Charles Swenberg to Answer Questions at Deposition and Request for Monetary Sanctions is GRANTED IN PART.

Plaintiff Charles Swenberg's Request for Judicial Notice is GRANTED.

"If a deponent fails to answer any question ... , the party seeking discovery may move the court for an order compelling that answer" (Code Civ. Proc., § 2025.480, subd. (a).) "If the court determines that the answer ... sought is subject to discovery, it shall order that the answer be given ... on the resumption of the deposition." (*Id.*, at subd. (i).) Here, Defendant dmarcian, Inc. ("dmarcian") moves, *inter alia*, for an order resuming the deposition of Plaintiff Charles Swenberg and compelling his answers to certain questions he was instructed not to answer or otherwise failed to respond at his July 15, 2026 deposition.

Before filing such a motion, the party seeking discovery must make "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a); see *id.*, at § 2025.480, subd. (c) [motion must be accompanied by declaration stating facts of attempt to reach informal resolution].) Swenberg contends that dmarcian has failed to satisfy this procedural requirement—averring that there has been a "complete failure" to meet and confer about individual questions—and that the motion should be denied as a result.

The declaration accompanying the motion states that dmarcian's counsel made multiple requests throughout the deposition to refrain from improper coaching and speaking objections. (Jul. 29, 2026 Declaration of Benjamin M. Wigley ("Wigley Decl."), ¶ 6.) It further states that, at the end of the deposition, dmarcian's counsel attempted to meet and confer on the record with Swenberg's counsel, and Swenberg's counsel refused to do so, insisting that no further deposition would take place. (*Id.*, at ¶ 7.) Finally, the declaration states that, after the end of the deposition, dmarcian's counsel requested further meetings and conferrals via email, to which Swenberg's counsel again replied that Swenberg would not be deposed again. (*Id.*, at ¶ 8.) The written communications identified the particular discrete categories of discovery misuse that dmarcian believed required the deposition to be resumed, to which Swenberg's counsel did not really directly respond, instead

contending that it was “[dmarcian’s counsel’s] problem not mine” that dmarcian had “wasted a lot of deposition time” (*Id.*, at exh. F.)

The level of effort at informal resolution which satisfies the “reasonable and good faith attempt” standard depends upon the circumstances. In a larger, more complex discovery context, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice. The history of the litigation, the nature of the interaction between counsel, the nature of the issues, the type and scope of discovery requested, the prospects for success and other similar factors can be relevant.

(*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431.) Taking the above factors into account, the declaration is sufficient under the circumstances to show dmarcian’s attempts at informal resolution of the issues raised by the motion were reasonable and made in good and faith. Accordingly, the Court reaches the substance of the motion.

The questions to which dmarcian seeks answers or further answers from Swenberg at a continued deposition consist of two categories: (1) questions to which Swenberg’s counsel purportedly made improper speaking questions thereby coaching Swenberg to answer a certain way, and (2) questions to which Swenberg’s counsel instructed Swenberg not to answer.

The motion is DENIED with respect to the first category. A motion to compel answers at a deposition is the proper remedy only when the deponents “fails to answer” a question—not when the deponent’s response has been improperly coached. (Code Civ. Proc., § 2025.480, subd. (a).) “Coaching a deponent” either through an unnecessary addenda to objections (i.e., ‘speaking objections’) or other means “is, of course, a misuse of the discovery process” and constitutes sanctionable conduct. (*Agnone v. Agnone* (2025) 111 Cal.App.5th 758, 766; see *Tucker v. Pacific Bell Mobile Services* (2010) 186 Cal.App.4th 1548, 1561–1562.) A fortiori, it also violates the standards of professionalism attorneys licensed in this state swear to uphold. (See State Bar of California Attorney Guidelines of Civility and Professionalism, § 9(a); Cal. Rules of Court, rule 9.7.)

However, when opposing counsel persists in engaging in such conduct, the proper remedy is to suspend the deposition and move for a protective order or seek appointment of a discovery referee. (See *Cal. Practice Guide: Civil Procedure Before Trial* (TRG 2026) ¶ 8:736.2.) While the deponent has given a coached answer, he has not *failed* to answer. Accordingly, the motion is denied as to those questions the basis of which is purported coaching or improper objections without an instruction not to answer, such as questions nos. 11–13 as set forth in the July 29, 2026 Separate Statement.

Unlike the first, the second category of questions is indeed remediable by an order compelling answers, as the category consists of questions that have in fact not been answered. Generally, deponents may “not be prevented by counsel from answering a question unless it pertains to privileged matters or deposing counsel’s conduct has reached a stage where suspension is warranted.” (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1015

disapproved on other grounds by *Maniago v. Desert Cardiology Consultants' Medical Group, Inc.* (2026) __ Cal.5th __, 346 Cal.Rptr.3d 98, 111.) The deponent's proper remedy is to suspend the deposition and move for a protective order if a question or line of questioning is irrelevant or repetitive to the point of being harassing—"witnesses are expected to endure an occasional irrelevant question without disrupting the deposition process" (*ibid.*)—not to refuse to answer the question. (See also State Bar of California Attorney Guidelines of Civility and Professionalism, § 9(a) ["attorney should not direct a deponent to refuse to answer a question or end the deposition without a legal basis for doing so"].)

For example, restrictions on the scope of answers due to purported repetition or calling for speculation such as those interposed in response to question nos. 2 and 6 are improper. Nor are instructions not to answer based on questions that call merely for the deponent's lay understanding of a legal concept—a mere fact—rather than a legal contention, theory, or application of law regarding the case, such as question no. 8. (See *Rifkind v. Superior Court* (1994) 22 Cal.App.4th 1255, 1262–1263.) Nor are instructions not to answer based on purported argumentativeness or harassment, such as question no. 21. Nor are instructions not to answer based on the purported irrelevance or lack of personal knowledge as to inadmissible materials, such as question no. 25. While the later use of any answer may be objectionable for various reasons, such grounds are not a proper basis for an instruction not to answer.

Accordingly, the motion is GRANTED as to this second category. Swenberg has already represented he is willing to sit for a further deposition, and the Court orders the resumption of his deposition at a mutually agreed date and time to take place on or before September 10, 2026. dmarcian's counsel is to include in the formal order a list of all questions within the second category, and Swenberg shall answer all the questions set forth in the formal order and all reasonably delimited questions following up on the answers given. At the resumed deposition, Swenberg's counsel shall refrain from interposing objections phrased in a manner longer than reasonably necessary to state the grounds for the objection.

Given the impending trial date, the age of the case, and the amount of discovery still contemplated, the Court suggests the parties stipulate to the use of a discovery referee to ensure all outstanding discovery is completed efficiently and without the cost of repeated judicial intervention. There are many excellent discovery referees. If the parties need suggestions, the Court suggests that either the Hon. Marie S. Weiner (Ret.) or the Hon. James McBride would be appropriate choices as a deposition referee for this type of case.

Both dmarcian and Swenberg request the imposition of monetary sanctions, and both requests are DENIED. Only a portion of the questions for which answers are sought to be compelled are the proper basis of a motion to compel, such that both parties have "acted with substantial justification" in bringing and opposing the motion. (Code Civ. Proc., § 2025.480, subd. (j).) Furthermore, to the extent monetary sanctions are sought based on particular discovery misuses, the evidence is insufficient to determine which expenses are reasonable and have been incurred as a result of the particular discovery misuse, given that the fees sought to be reimbursed include the entirety of the only partially successful motion, the entirety of the prior deposition, and speculative future expenses.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant and Cross-complainant dmarcian shall prepare, for the court's signature, a written order consistent with this ruling with the additional information discussed above, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 2

22-CIV-00303

AETNA INC VS GILEAD SCIENCES, INC

AETNA INC
GILEAD SCIENCES, INC

DANIEL A. SASSE
MICHAEL J SHIPLEY

PLAINTIFF AETNA INC.'S MOTION TO FILE DOCUMENTS UNDER SEAL

TENTATIVE RULING:

In this case, plaintiff Aetna Inc. (Aetna) sues defendants Gilead Sciences, Inc. and related Gilead entities (collectively Gilead) for alleged Cartwright violations.

The court has already granted Aetna's motion to seal Exhibit A to the second amended complaint.

The parties bring four motions to seal related to upcoming motions, three motions were filed on July 21, 2026 and one on August 4, 2026. Because the court anticipates that these documents will be used in other pre-trial motions, the court makes these findings as to the use of these documents in all pretrial documents so that the parties do not need to bring successive motions to seal these documents. This order does not extend to the trial and the court will discuss what documents, if any, will be sealed at trial at a pretrial conference.

Public access to court proceedings is paramount. (Code Civ. Proc., § 124; *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1197 (*NBC Subsidiary*)). “[O]pen trials serve to demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings [citation]; ‘[m]ore importantly,’ open trials provide a means, ‘akin in purpose to the other checks and balances that infuse our system of government,’ by which citizens scrutinize and ‘check’ the use and possible abuse of judicial power [citation]; and finally, ‘with some limitations’ [citation], open trials serve to enhance the truth-finding function of the proceeding [citation].” (*NBC Subsidiary*, at pp. 1201–1202, quoting Justice Brennan’s concurring opinion in *Richmond Newspapers, Inc. v. Virginia* (1980) 448 U.S. 555 [public access to criminal trial]; see *NBC Subsidiary*, at p. 1211 [concluding same principles apply to civil trials].) “ ‘Popular attendance at trials, in sum, substantially furthers the particular public purposes of that critical judicial proceeding. In that sense, public access is an indispensable element of the trial process itself....’ [Citation.]” (*NBC Subsidiary*, at p. 1202.) Court records are presumed to be open. (Cal. Rules of Court, rule 2.550(c).)

Public access, however, is not absolute. (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1217.) Certain types of information are confidential, and the public is not entitled to access that information. (See e.g. *Overstock.com, Inc. v. Goldman Sachs Grp., Inc.* (2014) 231 Cal.App.4th 471, 503.) To balance the competing policies, in order to prohibit the public from seeing certain documents in the court filed, the court must expressly find:

- (1) There exists an overriding interest that overcomes the right of public access to the records;
- (2) The overriding interest supports sealing the records;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the records are not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550.)

Aetna seeks to seal the following documents: Exhibits C through E to the Declaration of Kari G. Ferver in Support of Plaintiff Aetna Inc.'s Motion to Exclude Certain Opinions of Defendants' Expert, Anupam B. Jena, M.D., Ph.D. on the basis that they contain highly confidential and commercially sensitive information, including proprietary material and non-public trade secrets of Aetna. Aetna's interest in avoiding the competitive harm that would be associated with disclosure of this information overrides the public interest in gaining access to such document. (Aetna's notice of motion filed July 21, 2026.)

In its July 21, 2026 filed motions, Gilead seeks to seal portions of Gilead's Pretrial Motion No. 4 to Exclude Expert Testimony and Argument Relating to TAF and Exhibits 52, 58, 63–65, 67, and 78–79 on the basis that they contain confidential business and settlement information. (Gilead's unopposed application for leave to file under seal dated July 21, 2026.) Gilead also seeks to seal portions of Gilead's motion to determine applicable law and Exhibits 1 and 2 for the same reason. (Gilead's unopposed application for leave to file under seal filed July 21, 2026.)

In its August 4, 2026 motion, Gilead seeks to maintain the following documents under seal: Exhibit A to the Declaration of Kari G. Ferver in Support of Plaintiff Aetna Inc.'s ("Aetna's") Motion to Exclude Certain Opinions of Defendants' Expert, Anupam B. Jena, M.D., Ph.D. ("Jena Motion") and (ii) Exhibit B to the Declaration of Kari G. Ferver in Support of Aetna's Motion in Limine No. 1 to Exclude Evidence of Non-Party Teva's Subjective Perceptions ("Teva Motion," and together with Jena Motion, the "Motions"). (Gilead's unopposed motion for leave to maintain documents under seal filed August 4, 2026.) There are fourteen words (seven passing references) that Gilead seeks to seal. It seeks to seal information regarding financial information (damages and royalty) which are not specifically mentioned in plaintiff's summary judgment motion.

The court has reviewed the documents which the parties request to be sealed. They are the quintessential documents that the law allows to be sealed—confidential business or financial information that would not be public but for the lawsuit and the rules governing discovery. The depositions contain these sensitive information. The "settlement documents" are communications regarding confidential and commercially sensitive mental impressions of a settlement agreement and strategies, once again quintessential documents entitled to be sealed.

After a review of the documents, the court expressly finds:

(1) There exists an overriding interest that overcomes the right of public access to the records, i.e., confidential and sensitive business information of all parties and mental impressions and strategies of a confidential nature;

(2) The overriding interest supports sealing the records to protect the parties' interest;

(3) A substantial probability exists that the overriding interest will be prejudiced if the records are not sealed;

(4) The proposed sealing is narrowly tailored in that only the confidential and sensitive information is redacted; and

(5) No less restrictive means exist to achieve the overriding interest.

THE CLERK OF THE COURT IS THUS ORDERED TO SEAL THESE DOCUMENTS. The parties are to make sure that there is a public version of each of the documents which is in the court file.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for the party bring the motion shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 3

22-CIV-00303 AETNA INC VS GILEAD SCIENCES, INC

AETNA INC
GILEAD SCIENCES, INC

DANIEL A. SASSE
MICHAEL J SHIPLEY

DEFENDANTS' UNOPPOSED APPLICATION FOR LEAVE TO FILE UNDER SEAL

DEFENDANTS' UNOPPOSED APPLICATION FOR LEAVE TO FILE UNDER SEAL

TENTATIVE RULING:

See tentative ruling for line 2, which tentative ruling is incorporated by reference as if fully set forth herein.

2:00 PM

LINE 4

22-CIV-00303 AETNA INC VS GILEAD SCIENCES, INC

AETNA INC
GILEAD SCIENCES, INC

DANIEL A. SASSE
MICHAEL J SHIPLEY

DEFENDANTS' UNOPPOSED APPLICATION FOR LEAVE TO MAINTAIN DOCUMENTS UNDER SEAL

TENTATIVE RULING:

See tentative ruling for line 2, which tentative ruling is incorporated by reference as if fully set forth herein.

2:00 PM

LINE 5

24-CIV-02984

GONGQINGCHENG PANHUI INVESTMENT MANAGEMENT PARTNERSHIP VS YIHUA ZHU

GONGQINGCHENG PANHUI INVESTMENT MANAGEMENT PARTNERSHIP
YIHUA ZHU

BRETT RAMSAUR
GABRIEL COLWELL

DEFENDANTS YIHUA ZHU AND YUECHEN YANG'S JOINT MOTION TO QUASH PLAINTIFF'S DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS TO CITIBANK N.A.

TENTATIVE RULING:

Defendant Yihua Zhu's and Yuenchang Yang's (collectively, defendants) "Joint Motion to Quash Plaintiffs' Deposition Subpoenas for Production of Business Records to Citibank N.A.," filed July 29, 2026, is GRANTED. (Code Civ. Proc., § 1987.1.)

Background. Plaintiff has filed three related cases in this Court; the other two cases are 23CIV02886 (*Qongqingcheng Panhui Invest. Mgmt. P'ship v. Lihue Bai, et. al.*) and 23CIV02884 (*Qongqingcheng Panhui Invest. Mgmt. P'ship v. Jiman Zhu, et. al.*)

The two named defendants in the present case, Yihua Zhu and Yuechen Yang, are alleged to be a married couple. As alleged, in 2020, plaintiff obtained a foreign judgment in China against defendant Yihua Zhu's parents, Jiman Zhu and Lihui Bai (the Parents), who are now foreign money judgment debtors. Plaintiff thereafter filed three lawsuits in this court, including this case, seeking to collect on the foreign money (China) judgment. Plaintiff's complaint in this case alleges that the two Parents (Jiman Zhu and Lihui Bai), both prior to and after entry of the 2020 foreign money judgment, conspired with their son (defendant Yihua Zhu) and his wife (defendant Yuechen Yang) to transfer the Parents' funds to defendants as part of a conspiracy/scheme to render the Parents insolvent and to avoid the Parents' creditors. The complaint alleges that the Parents transferred their funds to defendants, for little or no consideration, which were then used to purchase several properties in the United States. (See Complt., generally.)

In July 2026, plaintiff served two subpoenas to third party Citibank N.A. (see July 29, 2026 Cochran Decl., Ex. D-E), seeking production of a very broad range of banking/financial records pertaining to the two defendants, the two Parents, and twelve (12) entities with which defendants and the Parents presumably have had some association. Plaintiff's counsel has provided a declaration stating that Lihui Bai, Yihua Zhu, and two of entities identified in the subpoenas hold (or held) accounts at Citibank. (Aug. 5, 2026 Rongping Wu Decl., ¶ 12.)

By this motion, defendants move to quash the two subpoenas in their entirety, pursuant to Code of Civil Procedure section 1987.1.

Since plaintiffs substantively opposed the motion, the court decides the motion Plaintiff's Opposition argues that the motion to quash should be denied on procedural grounds because

defendants served it on July 29, 2026, fourteen (14) court days prior to the August 18, 2026 hearing, in violation of Code of Civil Procedure section 1005, subdivision (b). However, after raising the issue, plaintiff has substantively responded, has not demonstrated any significant prejudice, has not requested a continuance of the hearing date, and plaintiff has had a full opportunity to be heard. Plaintiff has waived the defect. “It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion.” (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 930.) If, however, plaintiff can show prejudice and needs additional time to respond, it shall properly contest the tentative ruling, demonstrate the prejudice and the court will provide additional time to respond.

Defendants’ non-compliance with Code of Civil Procedure section 1985.3, subdivision (g) is not grounds to deny the motion. Plaintiff also argues that the motion should be denied on procedural grounds for non-compliance with Code of Civil Procedure section 1985.3, subdivision (g), which states, in part:

(g) Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production. The failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum but may be raised by the deposition officer as an affirmative defense in any action for liability for improper release of records.

Plaintiff notes that the subpoenas called for a July 17, 2026 production date, and that defendants did not file and serve this motion to quash until July 29, 2026. The court, however, does not find this non-compliance as requiring denial of the motion, given the statute’s express statement that “[t]he failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum ...”; see also *Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1312 (“Nothing in the procedure set forth above suggests that a court lacks jurisdiction to consider a motion to quash if it is brought after the date set forth in the subpoena for production”).

Further, defendants state that this motion to quash was served on Citibank on July 15, 2026 (July 29, 2026 Cochran Decl., ¶ 4), and that Citibank has not produced any documents in response to the subpoenas, and even requested that defendants file a motion to quash to preserve their objections. (Reply at p. 3.)

Plaintiff has not established that the subpoenas were properly served on Citibank. Defendants argue that Code of Civil Procedure section 2020.220 requires that plaintiff personally serve Citibank with the subpoenas, and that because plaintiff merely emailed the subpoenas to Citibank, and has not provided evidence of any agreement by Citibank to accept service by email, service was defective. Plaintiff, in response, argues that § 2020.220 only requires personal service of subpoenas on California residents, and that Citibank is not a California resident.

Plaintiff also argues that it served the subpoenas via email to an email address purportedly agreed to by Citibank, and thus, that plaintiff has complied with Citibank's own requirements for service. Plaintiff further argues that Citibank has not objected to service, and therefore, defendants lack any basis to object to service.

Plaintiff has not established proper service of the subpoenas on Citibank.

Although not raised by defendants and not a reason for granting the motion, the court notes that plaintiff states that Citibank is not a California resident (the court is not deciding whether Citibank is or is not subject to a California subpoena), but if in fact Citibank is not a California resident, then plaintiff may need to comply with the Interstate and International Depositions and Discovery Act (UIDDA). (See Code Civ. Proc., §§ 2029.100-2029.900.)

The court bases its decision on the fact that plaintiff appears to concede that it only emailed the subpoenas to Citibank and email service is not sufficient. Code of Civil Procedure section 2020.220 provides that "Any person may serve the subpoena by personal delivery of a copy of it, as follows ..." For an organization, it then identifies the persons to whom personal delivery may be made. Section 2020.220, subdivision (b) addresses the method of personal delivery, and section 2020.220, subdivision (c) separately addresses what personal service accomplishes when the deponent is a California resident. Service of a subpoena must be done personally. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1288–1289; *Target National Bank v. Rocha* (2013) 216 Cal.App.4th Supp. 1, 7–8.)

Further, even assuming personal service on Citibank was not necessarily required, plaintiff provides no evidence that Citibank agreed to accept service by email. The fact that plaintiff has communicated with Citibank regarding the subpoenas via email (see Cochran Decl., Ex. C) does not establish that Citibank agreed to accept service by email. (*In re Marriage of Moore, supra*, 102 Cal.App.5th at p. 1289.) Notably, defendants' moving papers pointed out the lack of evidence that Citibank agreed to accept service by email, yet plaintiff's Opposition papers still provided no evidence of any such agreement.

Plaintiff, therefore, has not established that the subpoenas were properly served on Citibank.

The court also rejects plaintiff's contention that defendants, who are consumers directly impacted by the subpoenas, cannot object to improper service on Citibank. Plaintiff provides no authority supporting this contention.

Additionally, and independently, plaintiff has not shown that it served a notice to consumer on either Jiman Zhu and Lihui Bai. The subpoenas seek production of virtually all documents relating to any banking/financial account held in the name of third parties (the Parents) Jiman Zhu and Lihui Bai, but the court sees no evidence that a Notice to Consumer was served on either Jiman Zhu and Lihui Bai. Code of Civil Procedure section 1985.3, subdivision (b) states, in part:

(b) Prior to the date called for in the subpoena duces tecum for the production of personal records, the subpoenaing party shall serve or cause to be served on the consumer whose

records are being sought a copy of the subpoena duces tecum, of the affidavit supporting the issuance of the subpoena, if any, and of the notice described in subdivision (e), and proof of service as indicated in paragraph (1) of subdivision (c). This service shall be made as follows:

- (1) To the consumer personally, or at his or her last known address, or in accordance with Chapter 5 (commencing with Section 1010) of Title 14 of Part 3, or, if he or she is a party, to his or her attorney of record ...
- (2) Not less than 10 days prior to the date for production specified in the subpoena duces tecum, plus the additional time provided by Section 1013 if service is by mail.
- (3) At least five days prior to service upon the custodian of the records, plus the additional time provided by Section 1013 if service is by mail.

The “Notice to Consumer” requirement expressly applies to non-parties. (See Code Civ. Proc., § 1985.3, subd. (g) [“Any other consumer or nonparty whose personal records are sought” may serve objections; see also § 1985.3(k) [“Failure to comply with this section shall be sufficient basis for the witness to refuse to produce the personal records sought by a subpoena duces tecum.”])] Thus, failure to serve Jiman Zhu and Lihui Bai with a Notice to Consumer constitutes a statutory basis for Citibank to refuse to produce the records.

Here, the subpoenas do not just incidentally mention the two parents (Jiman Zhu and Lihui Bai). Rather, they expressly seek the Parents’ own banking records across several very broad categories. That is, the subpoenas expressly target the Parents’ financial records. Thus, Code of Civil Procedure section 1985.3, subdivision (g) requires service upon them of a Notice to Consumer.

Had there been no procedural defects, the court would, at a minimum, have had to narrow the subpoenas’ scope, because they are overbroad. The motion is quash is granted, for the reasons stated above. The court, however, comments on defendants’ overbreadth/privacy objections so that the parties can have meaningful meet-and-confer and, hopefully, avoid another motion. The court reminds the parties that the Civil Commissioner conducts informal discovery conferences, which conferences this court encourages when parties cannot agree on the scope of discovery.

Defendants object to the subpoenas as being overbroad and as violating financial privacy rights. The court agrees and, if deciding the propriety of the requests would modify the subpoenas to address their overbreadth—that is, to limit them to seeking documents that are reasonably related to tracing the parents’ alleged transfers and the assets allegedly acquired with those funds.

The California Constitution expressly grants Californians a right to privacy. (Cal. Const., art. I, § 1.) “Protection of informational privacy is the provision’s central concern.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 (*Williams*)). There is a legally recognized privacy interest in a person’s financial affairs. (*Fortunato v. Super. Ct.* (2003) 114 Cal.App.4th 475, 480; *Valley Bank*

of Nevada v. Super. Ct (1975) 15 Cal.3d 652, 656-657 (*Valley Bank*).) The right of privacy, however, is not absolute (*Valley Bank, supra*, at p. 657.) The court must balance the right of privacy against the need for discovery. (*Williams, supra* at p. 552.) In general, the Supreme Court has established the following framework for evaluating potential invasions of privacy: the party asserting the privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy given the circumstances, and a threatened intrusion that is serious. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35.) The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives, or protective measures. A court must then balance these competing considerations. (*Id.* at pp. 37-40.)

When a discovery request implicates the constitutional right to privacy, the party seeking discovery of the private matter must do more than satisfy the relevance standard of Code Civ. Proc. § 2017.010. (*Williams, supra*, 3 Cal.5th at p. 556.) The more sensitive the nature of the personal information that is sought to be discovered, the more substantial the showing of the need for the discovery that will be required before disclosure will be permitted.

Here, given the fraudulent transfer allegations, plaintiff has legitimate and substantial discovery need for documents that may show fraudulent transfers, and therefore, the asserted privacy rights, on their own, do not justify quashing the subpoenas in their entirety. But the subpoenas here are extremely broad, to the point that they implicate substantial privacy rights. Viewed collectively, the six categories of requested documents appear to constitute, as Defendants characterize them, a “financial audit.” That is, they seek all documents pertaining to any account, loan, wire transfer, or correspondence, involving the two named Defendants, the two Parents, and/or any of twelve (12) separate identified entities, over a nine (9) year period. The subpoenas are broader than necessary to accomplish the stated purpose. For example, the two Parents could have Citibank accounts from which no funds were ever transferred to the two Defendants or to any other entity, and thus, would not reasonably be discoverable—yet as currently drafted, the subpoenas would require production of all documents pertaining to such an account. This type of “kitchen sink,” i.e., produce everything in your possession approach is prohibited. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 222.)

The focus must solely be on financial records capable of tracing the alleged transfers and acquisitions, rather than seeking all documents of any kind relating to any account associated with any of the four named individuals and/or the twelve (12) identified entities.

Conclusion. The motion to quash the subpoenas to Citibank, N.A. is GRANTED.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the

ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 6

24-CIV-06424

MARTA BOGACZYNSKA VS. SCOTT TURNER, ET AL.

MARTA BOGACZYNSKA
SCOTT TURNER

AARON P MINNIS
SHANNON R CLAWSON

MOTION TO COMPEL PLAINTIFF'S CONTINUED DEPOSITION AND FOR SANCTIONS

TENTATIVE RULING:

This as an employment case. Plaintiff Marta Bogaczynska has sued Defendants Pliant Therapeutics, Inc. and Scott Turner for sexual harassment, hostile work environment, sexual battery, and battery. Plaintiff has further sued Defendant Pliant for failure to prevent harassment.

Here, Defendant Turner seeks an order compelling the continued deposition of Plaintiff. Defendant further requests monetary, issue, evidentiary, and terminating sanctions against Plaintiff.

This issue before the Court is strikingly similar to the issue brought before the Court on a previous motion to compel Plaintiff's continued deposition, filed by Defendant Pliant. In the order on that motion, this Court noted:

This is the type of motion that never should have to been brought before the Court because good faith meet-and-confer negotiations should have resolved the issue. Based upon the Court's review of the facts, the issue of the timing of Plaintiff's deposition occurred because the parties did not talk about their expectations for the deposition beforehand and then did not meaningfully work for solutions after the deposition could not be completed in one day.

(Fernandez Decl., ¶ 3, Ex. 1, Order dated December 27, 2025.) The Court expresses the same sentiment here, eight months later, as the present motion reveals a similar failure of the parties to work together to resolve the routine issue of continuing a deposition that was not completed on the date noticed.

The Court's previous order further stated that "while it is presumably unlikely that Plaintiff's deposition will take more than one [more] day, *the parties shall nonetheless establish an agreeable plan to continue Plaintiff's deposition, should that be necessary.*" (*Ibid.*, emphasis added.) It appears to the Court that no such agreeable plan was established.

Defendant's motion to compel is GRANTED, with the condition that Defendant Turner's examination of Plaintiff not exceed eight (8) hours, excluding breaks. The Court imposes ***no requirement*** that the deposition be completed on one day or that it be continued on consecutive days.

Defendant's request for sanctions is DENIED in its entirety.

BACKGROUND

Previous Dispute Concerning Plaintiff's Continued Deposition

Plaintiff's deposition first commenced on July 31, 2025, with questioning by Plaintiff's counsel. (Fernandez Decl., ¶ 2.) That deposition was not completed in a single day. A dispute arose regarding when the deposition should continue, with Plaintiff insisting it must resume the very next day — August 1, 2025 — or not at all. (*Id.*) Plaintiff's counsel and counsel for Turner were not available on August 1, and Plaintiff refused to appear on any other date. (*Id.*) Defendant Plaintiff filed a motion to compel deposition.

On December 27, 2025, the Court granted Defendant Plaintiff's motion. (Fernandez Decl., ¶ 3, Ex. 1, Order dated December 27, 2025.) In the Order, this Court stated:

This is the type of motion that never should have to been brought before the Court because good faith meet-and-confer negotiations should have resolved the issue. Based upon the Court's review of the facts, the issue of the timing of Plaintiff's deposition occurred because the parties did not talk about their expectations for the deposition beforehand and then did not meaningfully work for solutions after the deposition could not be completed in one day.

(*Ibid.*)

The Court rejected Plaintiff's argument that Defendant was required to complete the deposition on consecutive days, notwithstanding boilerplate language in the deposition notice stating that the deposition would be completed "day to day" and an email from Plaintiff expressing such an expectation regarding the originally noticed deposition date. (*Ibid.*) However, the Court also noted that, prior to the deposition, Defendant failed to raise the issue of when the deposition would be completed in the event it was not completed on the noticed date, contrary to best practice. (*Ibid.*)

In granting the motion, the Court added: "Further, while it is presumably unlikely that Plaintiff's deposition will take more than one day, the parties shall nonetheless establish an agreeable plan to continue Plaintiff's deposition, should that be necessary." (*Ibid.*)

Current Dispute Concerning Plaintiff's Continued Deposition

Following the Court's December 2025 order, the parties met and conferred and agreed to continue Plaintiff's deposition on February 3 and 4, 2026. (Fernandez Decl., ¶ 4.) Plaintiff served a Notice of Continued Deposition providing that any incomplete deposition would continue on mutually agreeable future dates. (*Id.*, Ex. 2.) Plaintiff did not object. On February 2, 2026, Plaintiff's counsel notified counsel for Defendants that Plaintiff was experiencing an unspecified

medical issue and would be unable to appear for the deposition. (*Id.*, ¶ 5, Ex. 3.) The parties agreed to reschedule. (*Id.*) The deposition was reset for March 24–25, 2026, again with notice that any incomplete session would continue on mutually agreeable dates. (*Id.*, ¶ 7, Ex. 4.) Plaintiff again did not object. (*Id.*)

In early March 2026, Plaintiff’s therapists produced approximately 450 pages of additional records. (Fernandez Decl., ¶ 8.) Plaintiff’s counsel advised the parties on March 16, 2026, that Plaintiff intended to object to the use of portions of those records and agreed to re-produce redacted copies of the records reflecting those objections. (*Id.*, ¶ 9.) Plaintiff’s counsel suggested rescheduling the March 25 deposition to March 30 and 31 to allow counsel sufficient time to review the redacted records. Plaintiff’s counsel offered to continue on April 6–7 or May 7–8. (*Id.*, ¶¶ 9-10.) On March 19, 2026, Plaintiff’s lead counsel advised all parties of a death in her family, necessitating rescheduling the March 24-25 deposition. (*Id.*, ¶ 11, Ex. 5 at p. 24.)

During the parties’ discussions regarding rescheduling the deposition, Plaintiff’s counsel advised that she was unavailable on April 7 due to the need to travel to the funeral of her family member. (*Id.*, Ex. 7, at pp. 38-45.) Plaintiff’s counsel stated that if the deposition could not be held on April 6–7, it would have to be postponed to May 2026. (*Id.*, at pp. 35-37.) Plaintiff served a Second Amended Notice for the deposition to continue on April 6, which expressly stated: “If Plaintiff’s deposition is not completed on April 6, 2026, it will not continue on April 7, 2026, but will continue on a future date(s) to be scheduled based on mutual agreement of all parties and all counsel, until completed.” (*Id.*, Ex. 6, Second Amended Deposition Notice of Continued Deposition of Plaintiff.) Plaintiff did not serve formal objections to that notice but reiterated via email Plaintiff’s position that the deposition must proceed the following day or not at all. (*Id.*, ¶ 17, Ex. 7, at pp. 37-39.)

Plaintiff appeared for her continued deposition on April 6, 2026, commencing at approximately 10:00 a.m. as noticed, with questioning by Plaintiff’s counsel, and continuing until approximately 6:00 p.m. (Fernandez Decl., ¶¶ 19-20.) At approximately 6:00 p.m., Plaintiff’s counsel indicated that she had completed her questioning, except for questions relating to the redacted portions of Plaintiff’s therapist records on which Plaintiff intended to file a motion to compel. (*Id.*, ¶¶ 19-20.) Given that the court reporter had been typing for approximately eight hours and it was 6:00 p.m., Plaintiff’s counsel did not begin her questioning of Plaintiff on behalf of Plaintiff. Nor did Plaintiff’s counsel start her questioning on April 7, given that she knew Ms. Lazerson could not attend due to a family funeral and it would not be professionally courteous to proceed without her. (*Id.*, ¶ 21.)

Roughly two weeks later, on April 20, 2026, Defendant Plaintiff’s counsel emailed the parties proposing dates to continue Plaintiff’s deposition. (Fernandez Decl., ¶ 22, Ex. 9.) On April 22, 2026, Plaintiff responded with a detailed email stating Plaintiff’s position that the deposition was complete because it was not continued on consecutive dates, contrary to Plaintiff’s consistent demand. (Supp. Fernandez Decl., ¶ 21, Ex. 19, Plaintiff’s Email Dated June 22, 2026.) Plaintiff titled the email ““meet and confer re third deposition.” (*Ibid.*) Defendant Plaintiff filed this motion without responding to Plaintiff’s meet and confer email. (Ettinghoff Decl., ¶ 13.)

LEGAL STANDARD

A noticing party may move the Court for an order compelling a deponent's attendance and testimony, including an appearance for a continued examination. (Code Civ. Proc., § 2025.450, subd. (a).)

As a general matter, civil litigants have a statutory right to take depositions.

By refusing to compel a witness to answer proper questions, a trial court may effectively deny a litigant the right to take a deposition, since a right without means of enforcement, if such can exist, is of little practical value. Consequently, trial courts have been directed by writ of mandate to compel witnesses to answer questions on the taking of their depositions on the theory that it is their judicial duty to secure to a party the means of obtaining in advance of the trial information concerning the issues and the means of producing at the trial the evidence necessary to sustain his action or defense.

(McClatchy Newspapers v. Superior Court (1945) 26 Cal. 2d 386, 392.)

The Supreme Court of California has recognized the trial court's power to alter the timing of discovery proceedings, including depositions, to ensure fairness and proper administration of justice. *(Rosemont v. Superior Court of Los Angeles County (1964) 60 Cal.2d 709, 714.)*

Here, Defendant Turner is not the "noticing party" of Plaintiff's deposition. However, Code of Civil Procedure section 2025.450 separately authorizes relief "in favor of any party who, in person or by attorney, attended in the expectation that the deponent's testimony would be taken pursuant to that order." (*Id.*, subd. (h)(2).) In cases with multiple defendants, it is common practice for each defendant's counsel to question the plaintiff at one noticed deposition, rather than notice separate depositions. Further, Defendant's motion here concerns a deposition that this Court previously ordered be completed, and the Court retains inherent power to "compel obedience to its judgments, orders, and process." (Code Civ. Proc., § 128, subdivision (a)(4).) The previous order contemplated that Defendant Turner would participate in the deposition. (Fernandez Decl., Ex. 1, Order Compelling Deposition, at p. 3 ["[T]he Court finds that **Defendants** would be denied the right to obtain potentially relevant information if another session of Plaintiff's deposition was not taken." (emphasis added)].) Thus, while Defendant Turner is not the "noticing party," the Court exercises its discretionary authority to consider this motion to compel.

ANALYSIS

Meet and Confer

A motion to compel a deposition "shall be accompanied by a meet and confer declaration." (Code Civ. Proc., § 2025.450.) The statute does not distinguish between motions to compel prior to any court order compelling a deposition and motions to compel filed after such an order.

Here, Defendant's counsel's declaration in support of Defendant's opposition only establishes that she sent an email Plaintiff's counsel on April 20, 2026, roughly two weeks after Plaintiff's second day of testimony, proposing dates to continue Plaintiff's deposition – and that Plaintiff's counsel responded two days later by stating that Plaintiff's position was that the deposition had concluded because it was not continued to the following day, April 7, 2026. (Fernandez Decl., ¶¶ 22-24.) Defendant did not respond. More specifically, Defendant failed to respond when Plaintiff affirmatively took the position that is the subject of this motion. The Court does not find this to be a good-faith effort to meet-and-confer on Defendant's part.

Defendant's supplemental declaration fares no better. Defendant argues that Plaintiff's counsel sent the email stating his position that the deposition was complete, he changed the subject line of the email chain to "meet and confer re third deposition." (Supp. Fernandez Decl., Ex. 19, Plaintiff's Email Dated June 22, 2026.) However, as already noted, Defendant did not respond to that email. If anything, the email reflects that *Plaintiff* attempted to initiate a meet and confer on the issue and Defendant proceeded to file the motion without engaging.

In the interest of resolve this issue, the Court exercises its discretion to consider the merits of the motion notwithstanding Defendant's failure to meaningfully meet and confer prior to filing this motion. In doing so, the Court notes that Defendant's counsel's supplemental declaration supports that, after the motion was filed, the parties made a substantially better effort to resolve pending discovery disputes, including rescheduling Plaintiff's continued deposition, and that those efforts were initiated by Defendant's counsel after the Trial Setting Conference held in this matter. (See Fernandez Decl., Exs. 10-16.)

Motion to Compel

Like before, Plaintiff argues that Defendants were obligated to complete her deposition on consecutive days and failed to do so. Plaintiff asserts that this Court's previous order held that "a party must clearly and specifically communicate [the] expectation [that a deposition be held on consecutive days], in advance of the session, for it to control." (Oppo., at p. 8:14-17.) Plaintiff's assertion rests, at least in part, on the Court noting that Plaintiff's previous expectation that her deposition would be completed on consecutive days was "colorable." (*Ibid.*)

Plaintiff misinterprets the Court's Order and, the Court apologizes if the order was not explicit enough. The Court found Plaintiff's expectation "colorable" in the sense that it was not an unreasonable misunderstanding under the circumstances – where the deposition notice included boilerplate language that the deposition would be held day-to-day and Plaintiff had previously expressed an expectation of such – and therefore did not warrant sanctions. It was not the Court's opinion that a deponent may bind opposing parties to completing a deposition on consecutive days by unilaterally demanding such. While there may be some circumstances where such a finding could be warranted, the Court is not aware of any authority supporting such a proposition as a general principle.

This motion is no exception, particularly given that the deposition notice for Plaintiff's April 6, 2026 deposition explicitly stated: "If Plaintiff's deposition is not completed on April 6, 2026, *it will not continue on April 7, 2026, but will continue on a future date(s) to be scheduled based on mutual agreement of all parties and all counsel, until completed.*" (Decl., Ex. 6, Second Amended Deposition Notice of Continued Deposition of Plaintiff [emphasis added].) And further where, in response to Defendant's attempt to demand the deposition be completed on consecutive days (if necessary), Plaintiff's counsel responded: "We will proceed with Plaintiff's deposition on April 6 *as noticed.*" (*Id.*, Ex. 7. Email Correspondence, March 24-26, 2026 [emphasis added].)

Plaintiff further argues that Defendant's position that he will proceed only "without artificial time limitations" (i.e. without agreeing to complete the deposition in one day or on consecutive days) would potentially allow "the deposition [to] continue indefinitely through a series of intermittent sessions, with no meaningful limitation on when the examination will finally conclude." (Oppo., 6:27 – 7:2.) Though heavy-handed, Plaintiff's concern is not without merit. Plaintiff has already been deposed on two separate days for a total of approximately 15 hours (not excluding breaks). The Court stated in its previous ruling that "it is presumably unlikely that Plaintiff's deposition will take more than one [more] day." Yet, after an additional day of Plaintiff's deposition, Defendant Turner's counsel has not yet questioned Plaintiff, and Defendant Plaintiff's questioning remains open as to questions relating to previously redacted portions of Plaintiff's therapist records.

Accordingly, the Court GRANTS Defendant Turner's motion to compel, with the limitation that Defendant Turner's questioning shall not exceed eight (8) hours, excluding breaks. The Court imposes **no requirement** that the deposition be completed on one day or, if necessary, on consecutive days. Absent good cause or an agreement of the parties, the deposition shall be completed by October 23, 2026. In light of the nature of the case, the court allows Plaintiff to have a support person with her during the deposition. This support person may not say anything during the deposition, but is only there to provide support. A support person often appears in court during testimony of the type that plaintiff will be providing at her deposition and, if Plaintiff would like a support person, the Court finds it a reasonable accommodation.

Prior to setting the deposition, the parties shall meet and confer to establish mutually agreeable times – including mutually agreeable dates to continue the deposition in the event it is not completed on the date(s) noticed. Given complications related to Plaintiff taking off work, the Court encourages the parties to consider weekend deposition dates. If the deposition is continued and complications arise as to the agreed upon dates, the Court expects the parties to resolve the matter collegially and without Court intervention. That expectation extends to other discovery disputes that may be pending. The parties are reminded of their professional obligations, including their obligations to meet and confer in good faith to resolve issues and to respect the legitimate interests of fellow members of the bar, which includes opposing parties in litigation. The Court notes that it is in everyone's best interest that there not be a motion in limine at trial to exclude certain evidence because the party did not have enough time at deposition to ask questions.

Sanctions

Defendant's request for monetary sanctions is DENIED.

The Court finds that sanctions would be unjust here where, as noted above, Defendant failed to make meet and confer efforts prior to bringing this motion and parties collectively failed to establish an agreeable plan to continue Plaintiff's compelled deposition, if necessary, as the Court instructed in its previous order.

Defendant's request for issue, evidentiary, and terminating sanctions is DENIED.

The Court finds that such sanctions are not warranted here. The Court notes that Plaintiff appeared for her deposition as required by this Court's previous Order and based her refusal to continue that deposition on a date other than April 7, 2026, on a misinterpretation of commentary in this Court's previous Order regarding whether a deposition may be required to be continued day-to-day based on a party's express demand made prior. The Court finds Plaintiff's conduct here distinct from disobeying a Court order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant Turner shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 7

24-CIV-06446

PATRICK SCOTT, ET AL. VS. FORD MOTOR COMPANY, ET AL.

PATRICK SCOTT
FORD MOTOR COMPANY

ROGER KIRNOS
MICHAEL D MORTENSON

PLAINTIFFS' MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES

TENTATIVE RULING:

Plaintiffs Patrick Scott and Cheryl McBride's motion for attorneys' fees, costs and expenses is GRANTED-IN-PART pursuant to Civil Code section 1794 and the terms of the parties' settlement agreement.

On October 14, 2024, plaintiffs filed this Song-Beverly case, and on December 17, 2025, plaintiff filed a notice of conditional settlement. Plaintiffs seek a total fee award of \$16,528.50 (lodestar amount of \$11,019.00 with a 1.5 multiplier) and costs of \$3,102.38.

Generally in this county, the parties have been able to negotiate their attorneys' fees in Song-Beverly actions without the necessity of bringing a motion. No agreement was reached in this case and plaintiffs filed this motion, which defendant has opposed. The court finds the sniping between counsel, especially in the reply brief unprofessional.

As the prevailing party, plaintiffs' counsel are entitled to their attorneys' fees. A buyer who prevails in an action under the Song-Beverly Warranty Act is entitled to recover costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105 (*Reynolds*)). The Legislature has recognized that lawyers who take on Song-Beverly cases that seek to vindicate fundamental public policies should receive reasonable attorneys' fees. (*Reynolds*, at p. 1111.)

Attorneys' fees in a Song-Beverly case are based upon the lodestar method. (*Reynolds, supra*, 47 Cal.App.5th at p. 1112.) California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 [internal quotations and citation omitted].) "The major factors the trial court must consider in determining an attorneys' fee award include: the nature of the litigation and its difficulty; the amount of money involved in the litigation; the skill required and employed in handling the litigation; the attention given to the case; the attorney's success, learning, age and experience in the particular type of work demanded; the intricacy and importance of the litigation; the labor and necessity for skilled legal training and ability in trying the case; and the amount of time spent on the case." (*Id.* at p. 1508 [citing *In re Marriage of Cueva* (1978) 86 Cal.App.3d 290, 296 and *Nevin v. Salk* (1975) 45 Cal.App.3d 331, 343].) "[T]he fee setting inquiry in California ordinarily

begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.

As to the hourly rate, the reasonable hourly rate is the reasonable hourly rate for San Mateo County where this case is venued. “ ‘The reasonable hourly rate is that prevailing in the community for similar work.’ ” (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at p. 1095].) Plaintiffs cite to a number of trial court opinions that awarded their counsel’s requested hourly rate. Some of those cases were from the San Francisco Bay Area, and one was from San Mateo County, *Benjamin v. FCA US LLC*, 17Civ02123 (Kirnos Decl., ¶29(h), Ex. DD.) Defendants object that the requested hourly rates are too high for Song-Beverly cases in San Mateo County. However, there examples are not from San Mateo County and the ELM Solutions 2022 Real Rate Report is from 2022. ((Maggio Decl., Ex. B.) This court may use its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney’s services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds, supra*, 47 Cal.App.5th at pp. 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.” (citations omitted)]). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys’ fees and costs frequently during her time as a judicial officer. The Laffey matrix is another resource to determine a reasonable hourly rate. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702 [court can use Laffey Matrix for reasonable hourly rate].) The court finds that hourly rates ranging from \$145.00 to 600.00 reasonable to prosecute a Song-Beverly case in San Mateo County.

As to the reasonableness of the work, this court has a responsibility to review the billing records. In *Ketchum v. Moses*, our Supreme Court explained: “In referring to ‘reasonable’ compensation, we indicated that trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1132.) In *Harman v. City and County of San Francisco* (2006) 136 Cal.App.4th 1279 the court analyzed the considerations relevant to this initial lodestar determination by looking to *Hensley v. Eckerhart* (1983) 461 U.S. 424 (superseded in part by statute on other grounds), in which the court “instruct[ed] that the initial lodestar calculation should exclude ‘hours that were not reasonably expended’ “ and drew an analogy to private billing practices: “ ‘Counsel for the prevailing party should make a good-faith effort to exclude from a fee request hours that are excessive, redundant, or otherwise unnecessary, just as a lawyer in private practice ethically is obligated to exclude such hours from his fee submission. “In the private sector, ‘billing judgment’ is an important component in fee setting. It is no less important here. Hours that are not properly billed to one’s client also are not properly billed to one’s adversary pursuant to statutory authority.” ‘ “ (*Harman v. City and County of San Francisco*, at p. 1310 [quoting *Hensley v. Eckerhart*, at p. 434].) “Counsel is not entitled to compensation for ... work merely because it was performed. Rather, it is counsel’s burden “to persuade the trial court the work was reasonably necessary, both as to the particular

tasks performed and the amount of time devoted to them.” (*Howell v. State Dept. of State Hospitals* (2024) 107 Cal.App.5th 143, 158–159 [internal quotations and citation omitted].)

Here, plaintiff’s counsels’ time entries show 27.1 hours expended for a total lodestar of \$11,019.00 (Kirnos Decl., ¶2, Ex. A.) The court expresses concerns that timekeepers only record their time on a weekly basis. (Kirnos Decl., ¶ 21.) Generally, firms that bill their time in the tenth of an hour increments keep daily time records.

Defendants seek to reduce specific time:

Defendants argue to exclude fees billed for attorneys not licensed in California and identify Luis Pagola. However, plaintiffs’ counsel only used him as a law clerk, which has his hourly rate of \$200, which hourly rate the court finds reasonable.

Defendants claim that most of the work was “cookie-cutter template” work. A great deal of work, on both sides of the aisle in all sorts of the case is repetitive. Even though, for example, the same discovery must be propounded in each case, the lawyer responding to the discovery has a professional duty to respond on behalf of the individual client. The court finds the time for responding to discovery reasonable.

However, for the PMQ deposition, since defendants objected, the court finds the billing of .9 hours on September 8, 2025 for \$475.00 unreasonable and strikes it.

The court finds the clerical work compensable. (*Salton Bay Marina, Inc. v. Imperial Irrigation Dist.* (1985) 172 Cal.App.3d 914, 951; *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187.) However, the court finds that a reasonable hourly rate is \$145.00 per hour, the rate charged by paralegal Patricia Cortazar.

The court finds the challenged internal communications and the “block billing” on October 15, 2025 de minimus and reasonable.

The court finds the entry on August 28, 2025 and September 12, 2025 for a non-attorney to send a client communication reasonable. Attorneys have a professional obligation to keep their clients informed about the case.

The court finds the time for preparing the fee motion reasonable and the reasonable rate to be \$350.00 per hour for this type of work. Since defendants have made numerous challenges to the motion, which plaintiffs’ counsel needed to review and prepare the reply, the court finds the anticipated time for the opposition and reply reasonable and the reasonable rate to be \$350.00 per hour. If defendants contest the tentative ruling, the court will grant an additional fee request for the time spent preparing for and attending the hearing.

The court denies a request for a lodestar. The lodestar amount “ ‘may be adjusted by the court based on factors including ... (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.’ ([Citations])” (*Center for Biological Diversity v. County of San Bernardino* (2010) 185 Cal.App.4th 866, 899.) “ ‘[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.” [Citation] ‘[T]he unadorned lodestar reflects the general local hourly rate for a fee-bearing case; it does not include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider.... The adjustment to the lodestar figure, *e.g.*, to provide a fee enhancement reflecting the risk that the attorney will not receive payment if the suit does not succeed, constitutes earned compensation; unlike a windfall, it is neither unexpected nor fortuitous. Rather, it is intended to approximate market-level compensation for such services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney fees.’ [Citation] In cases involving the enforcement of constitutional or statutory rights, “such fee enhancements may make such cases economically feasible to competent private attorneys. [Citation.] ‘[M]ost lawyers of this quality do seem to consider the prospects of success and the fee recoverable before adding to their crowded calendars a case in which payment is contingent.’ ” [Citation.] (*Ibid.*) The trial court can consider contingent risk and delay in determining the reasonable hourly rates of the attorneys and not consider it when considering a multiplier. (*California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537.) The court considers the contingent risk and delay in the hourly fee and does not find a multiplier appropriate in this case.

On May 7, 2026, plaintiffs filed a cost bill. No motion to strike or tax the costs was filed within the statutory period. (Cal. Rules of Court, rule 3.1700(b)(1). Moreover, if, as in this case, items on a verified memorandum of costs appear to be proper, they are *prima facie* evidence of their propriety and it is up to defendants in this case to show that the costs were not reasonably incurred. (*Cal. Judges Benchbook Civ. Proc. Trial* § 16.18 (Jul 2026 update).) Defendants do not show that any cost was not reasonable incurred, but only contend that plaintiffs have not demonstrated that the costs were reasonably incurred. The court finds the costs reasonable and necessarily incurred.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiffs shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order should include the total of the attorneys’ fees and costs awarded.

2:00 PM

LINE 8

25-CIV-00580

JOSE WALTER PAZ VS. EMILY KRISTEN BURNS

JOSE WALTER PAZ
EMILY KRISTEN BURNS

DANIEL DE SOTO
AKHILA GANAPATHY

PLAINTIFF JOSE WALTER PAZ' MOTION TO APPOINT SUCCESSORS IN INTEREST

TENTATIVE RULING:

Before the Court is the motion of Fernando Paz Romero, Steven Paz Romero, and Damaris Romero Canas to be appointed as the successors-in-interest to Plaintiff Jose Walter Paz who passed away November 22, 2025. (Declaration of Daniel A. De Soto in support, Ex. A.) Defendant Emily Kristen Burns filed her notice of non-opposition to the motion on August 5, 2026. The motion is GRANTED.

Under California law, “a cause of action for ... a person is not lost by reason of the person’s death...” (Code Civ. Proc. § 377.20, subd. (a).) Code section 377.30 addresses who may pursue a survival action for a decedent. Under this section, a “cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent’s successor in interest, ... and an action may be commenced by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (Code Civ. Proc. § 377.30) A successor in interest is defined as “the beneficiary of the decedent’s estate” or any “other successor in interest who succeeds to cause of action or a particular item of the property that is the subject of a cause of action.” (Code Civ. Proc. § 377.11.)

Code of Civil Procedure section 377.32, requires one seeking “to continue a pending action or proceeding as the decedent’s successor in interest” file a declaration stating, among other things, (1) “ ‘[n]o proceeding is now pending in California for administration of the decedent’s estate[,]’ ” (2) the declarant is the decedent’s successor in interest, and (3) “ ‘[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.’ ” (Code Civ. Proc. § 377.32, subd. (a).)

Here, successors in interest Fernando Paz Romero, Steven Paz Romero, and Damaris Romero Canas have each submitted their section 377.32 declarations in support of the motion and plaintiff filed a notice of non-opposition. (De Soto Decl. Exs. A-D.) Accordingly, for good cause shown, the motion is GRANTED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for plaintiff shall prepare a written order consistent with this ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 9

26-CIV-00804

AHMAD HAWAMDAH VS. ARJUN NARAYAN, ET AL.

AHMAD HAWAMDAH
ARJUN NARAYAN

MICHAEL INDRAJANA
GERALD T. LAU

PLAINTIFF AND CROSS-DEFENDANT HAWAMDAH'S DEMURRER TO RAVE FACTORY LLC'S CROSS-COMPLAINT

TENTATIVE RULING:

The court sustains with leave to amended plaintiff and cross-defendant Ahmad Hawamdah's (Hawamdah) unopposed demurrer to defendant and cross-complainant Rave Factory LLC's (Rave) cross-complaint.

Courts have construed the failure to oppose a motion as having an abandonment of the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiff did not oppose the County's [motion] to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiff to have abandoned the issue."]; *Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602 [failure to oppose a motion results in a waiver on appeal of any objection to the resulting order.]) While generally, especially when the issue is one of law the court substantively review the demurrer (*California Judge's Benchbook: Civil Proceedings Before Trial* § 6.22 (Thomson Reuters Mar. 2026 update)), in this case on August 5, 2026, the date opposition was due, counsel for Rave telephoned and emailed Department 4 to state that Rave would be filing an amended cross-complaint rather than filing an opposition. Rave has not yet filed an amended cross-complaint, but the court takes the communications to the court and the failure to file the opposition as an acknowledgement that at least some of Hawamdah's arguments have merit.

Accordingly, the court sustains the demurrer with leave to amend. Rave has ten days from notice of entry of order to file an amended cross-complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Hawamdah shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 10

26-CIV-01212

MATTHEW PACLEB, INDIVIDUALLY, AND ON BEHALF OF OTHER SIMILARLY SITUATED
EMPLOYEES VS SALT & STRAW, LLC

MATTHEW PACLEB, INDIVIDUALLY, AND ON BEHALF OF OTHER SIMILARLY SITUATED EMPLOYEES

SALT & STRAW, LLC

MARK D KEMPLE

DEFENDANTS' MOTION TO CONSOLIDATE AND, ONLY IF NEEDED, TO LIFT STAY

TENTATIVE RULING:

Defendants Salt & Straw, LLC, Salt & Straw, Inc., and Salt & Straw Holdings, LLC's ("Defendants") Motion to Consolidate and, Only if Needed, to Lift Stay is GRANTED.

Code of Civil Procedure section 1048(a) provides:

When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.

The court finds that plaintiff Matthew Pacleb's class action (*Matthew Pacleb v. Salt & Straw, LLC, et al.*, case no. 26-CIV-01212) and his Private Attorney General Act (PAGA) action (*Matthew Pacleb v. Salt & Straw, LLC, et al.*, case no. 26-CIV-03215), both filed in San Mateo County, raise common questions of law and fact based on alleged Labor Code violations arising from the same defendants' policies and practices with regard to defendants' employment of plaintiff. The following chart shows the overlap of claims:

<i>Class action (lead case)</i>	<i>PAGA action</i> (premised on the following claims)
1) Failure to Pay Minimum Wages (§§ 35 – 40)	Failure to pay minimum wages (§ 36(b))
2) Failure to Pay Overtime Wages (§§ 41 – 48)	Failure to pay overtime wages (§ 36(a))
3) Meal Break Violations (§§ 49 – 60)	Failure to provide legally required meal periods & pay required meal period premiums (§§ 36(d), (e))
4) Rest Period Violations (§§ 61 – 70)	Failure to provide legally required rest periods & rest period premiums (§ 36(f), (g))
5) Failure to Timely Pay Wages (§§ 71 – 76)	Failure to timely pay wages (§ 36(h))

6) Wage Statement Violations (§§ 77 – 82)	Failure to provide accurate wage statements (§ 36(j))
7) Waiting Time Penalties (§§ 83 – 87)	Failure to pay all wages at time of discharge (§ 36(i))
8) Failure to Reimburse Business Expenses (§§ 88 – 91)	Failure to reimburse business-related expenses (§ 36(l))
9) Violation of the Unfair Competition Law, Bus. & Prof. Code §§ 17200, et seq. (§§ 92 – 97)	
	Unlawful wage deductions (§ 36(c))
	Failure to keep complete and accurate payroll records (§ 36(k))

While the class action raises an Unfair Competition Law claim that is not in the PAGA action and the PAGA action raises unlawful wage deduction and failure to keep complete and accurate payroll record claims that are not in the class action, the court finds that these claims are still based on the exact same underlying facts. There does not need to be a complete alignment of claims for the court to order consolidation. The efficiencies and saving of resources of consolidation outweigh the disadvantages of consolidation. In this court's experience, plaintiffs often bring the class and PAGA cases in one action or the parties stipulate to consolidate the claims. While the parties do not cite, and the court was unable to find any appellate authority directly considering the issue of the consolidation of class and PAGA claims, the court notes that in *Estrada v. Royalty Carpet Mills, Inc.* (2024) 15 Cal.5th 582, our Supreme Court that discussed a trial court's handling of a class and PAGA case without any discussion about the impropriety of the claims being handled in one case.

As for plaintiff's argument that consolidation is improper because it will necessarily impose class action requirements on his PAGA action, the court finds that the argument is not well taken and unsupported by plaintiff's cited case law. This court can and regularly does handle class action cases which include a PAGA cause of action without violating plaintiffs' due process rights. Plaintiff argues that consolidation will cause unfair delay to his PAGA claim, but he makes no such showing and he has already agreed that (1) the court issue an order designating discovery produced in either case applicable to both; (2) the cases have joint case management conferences; and (3) if defendants file a motion, they can file it in both cases on a shared schedule with a single hearing. It would be inefficient for there to be two trials because the court, as the decider of fact in the PAGA case, can hear all the evidence in the class action, which is entitled to a jury trial, and any specific PAGA evidence can be presented outside the presence of the jury. Since the court must attend the jury trial, there is no downside to the court hearing evidence relevant to the class claims, which evidence is not relevant to the PAGA claims.

While the parties have stipulated to the mandatory stay pursuant to Code of Civil Procedure section 1281.4 pending disposition of defendants' motion to compel arbitration, the stipulation and order specifically carves out, as is appropriate, defendants' right to seek consolidation. (Stipulation & Order in 26Civ02323 filed Apr. 16, 2026 at p. 3:2-6.) Thus, the court has the jurisdiction to issue an order on consolidation.

Since 26Civ01212 was the first filed case, it shall be the lead case and it shall be consolidated with 26Civ03215

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 11

26-CIV-03215 MATTHEW PACLEB, INDIVIDUALLY AND ON BEHALF OF AGGRIEVED EMPLOYEES
PURSUANT TO THE CALIFORNIA PRIVATE ATTORNEYS GENERAL ACT VS SALT &
STRAW, LLC

MATTHEW PACLEB, INDIVIDUALLY AND ON BEHALF OF AGGRIEVED
EMPLOYEES PURSUANT TO THE CALIFORNIA PRIVATE ATTORNEYS
GENERAL ACT

SALT & STRAW, LLC

RYAN T. CHUMAN

MARK D KEMPLE

DEFENDANTS' MOTION TO CONSOLIDATE AND, ONLY IF NEEDED, TO LIFT STAY

TENTATIVE RULING:

See tentative ruling on motion to consolidate in case no. 26Civ01212, which tentative ruling is incorporated by reference as if set forth fully herein.

2:00 PM

LINE 12

26-CIV-05795

REDWOOD 31 CENTER STREET LLC VS. WING ON CONSTRUCTION, INC.

REDWOOD 31 CENTER STREET LLC
WING ON CONSTRUCTION, INC.

PETER PROWS

PETITION FOR ORDER RELEASING MECHANIC'S LIEN AND REQUEST FOR ATTORNEY'S FEES

TENTATIVE RULING:

Petitioner Redwood 21 Center Street LLC's unopposed Petition for Order Releasing Mechanic's Lien is GRANTED pursuant to Civil Code section 8460, subdivision (a), as follows:

Petition to Release Mechanic's Lien

The owner of property affected by a mechanic's lien may petition for release of the lien upon the failure to timely enforce the lien by prosecution. (*Solit v. Tokai Bank, Ltd. New York Branch* (1999) 68 Cal. App. 4th 1435.) A mechanic's lien claimant is required to commence an action to enforce the lien within 90 days after recordation of the claim of lien or the claim of lien expires and is unenforceable. (Civ. Code, § 8460, subd. (a).) At least ten (10) days before filing the petition for release of lien, the owner of the affected property must give the lien claimant notice demanding that the claimant execute and record a release of the claim of lien in accordance with notice requirements for works of improvement and stating the grounds for the demand. (Civ. Code, §§ 8100 to 8119, and 8482.) A copy of the petition and notice of the hearing must be served in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant at the statutorily authorized location at least fifteen (15) days before the hearing. (Civ. Code, § 8486.) Petitioner has the initial burden of evidence showing compliance with the service and date for hearing requirements, while the lien claimant has the burden of proof as to the validity of the lien. (Civ. Code, §8488, subd. (a).)

This action pertains to property owned by Petitioner Redwood 21 Center Street LLC, with the former street address, 31 Center Street (Assessor's Parcel Number 053-336-080) (the "Subject Property.") The Subject Property has been subdivided into seven street addresses.

Respondent Wing On Construction, Inc. filed a Claim of Mechanic's Lien pertaining to the Subject Property on or about July 10, 2024 as Document No. 2004-036326 in the amount of \$209,981.79. (Verified Petition, ¶¶6-7, Exh. B.) The lien claim was paid to Respondent in the amount of \$209,981.79 in principal and \$11,901.00 in interest. (*Id.*, at ¶9, Exh. C.) Respondent did not bring an action to enforce the lien within 90 days of recordation. (*Id.*, at ¶12.) Petitioner sent Respondent a written demand to release the lien by certified mail on June 18, 2026 and Respondent did not respond within 10 days, nor at all as of July 24, 2026. (*Id.*, ¶¶10-11, Exh. D.) The Petition was served by certified mail, return receipt requested, on July 28, 2026. (Proof of Service filed July 29, 2026.) No Opposition has been filed.

The Petition is accordingly GRANTED.

Attorney's Fees

The prevailing party on a petition to release a mechanic's lien is entitled to reasonable attorney's fees. (Civ. Code, § 8488, subd. (c).) Petitioner requests an award of \$8,800.00 in attorney's fees for sending the letter to Respondent demanding a signed Release, preparing the Petition, and \$550.00 in anticipated fees for attending the hearing. (Verified Petition, ¶17.) The request for an award of fees is not supported by a declaration stating how much time was expended on each task, or at what hourly rate. The anticipated fees for attending the hearing do not appear necessary because the Petition is unopposed, but if the tentative ruling is contested the court will award fees for the hearing. The brief three page Petition with four attachments is straightforward. Attorney's fees are awarded in favor of Petitioner and against Respondent Wing On Construction, Inc. in the reduced amount of \$4,500, representing eight and one-half hours of work reasonably expended at a reasonable hourly rate of \$500/hr., to be paid within 30 days of notice of entry of this order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Petitioner shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

POSTED: 3:00 PM